City of Windsor Heights Regular Business Meeting Minutes
Monday, July 13, 2026 - 6:00 PM
WINDSOR HEIGHTS COUNCIL CHAMBERS - 1133 66th ST

1. **Call to Order/Roll Call/Pledge of Allegiance**

   Mayor Mike Jones called the meeting to order at 6:00 PM. Members present: Susan Skeries, Joseph Jones, Lauren Campbell, Fletcher Barry, Threase Harms. Staff present: City Administrator Adam Plagge, City Clerk Adam Strait, Finance Director Rachelle Swisher, Fire Chief Jim Mease, Police Chief Pete Roth, Public Works Director Andy Larson, City Attorney Erin Clanton, City Engineer Justin Ernst, City Planner Trey Rouse

2. **Approval of the Agenda**

   Motion by Threase Harms to APPROVE. Seconded by Susan Skeries. Motion passed 5-0.

3. **Public Forum:** This is time set aside for comments from the public on topics of City business other than those listed on the agenda. No action may be taken. Please come to the podium, state your name and address for the record and keep your comments to no more than 5 minutes.

   No public comment given.

4. **Consent Agenda:** Any item on the Consent Agenda may be removed for separate consideration.

   Motion by Threase Harms to APPROVE. Seconded by Susan Skeries. Motion passed 5-0.

   A. Approve Minutes of the Regular Council Meeting on June 15, 2026

   B. Approve Financial Reports

   C. Approve Liquor License - Super Quick Mart - 7690 Hickman Road

   D. Approve Liquor License Ownership Update - Pump & Pantry - 7220 Hickman Road

   E. Approve 68th Street Pay Request 11

   F. Approve 73rd Street Phase 1 STP-U-8477(615)—70-77 Pay Request 21

   G. Approve 74th Street Reconstruction Project Pay Request 2

   H. Approve Resolution No. 2026-45 - A Resolution Authorizing Internal Advance for Funding of Urban Renewal Project (University Avenue and 70th Street Improvement, Maintenance and Beautification Project)

   I. Approve Resolution No. 2026-49 - A Resolution Approving Fiscal Year 2026 Year End Transfer for the City of Windsor Heights

   J. Approve Resolution No. 2026-50 - A Resolution Designating the Official Locations for Posting Notice of Meetings Pursuant to Iowa Code Section 21.4

5. **Action Items:**

A. Consideration Resolution No. 2026-51 A Resolution Authorizing the ARL to Coordinate Intake, Veterinary Services and Reclaim Services Related To Community Cats In Windsor Heights

Adam Plagge presented the item. Plagge explained that, following the adoption of the City's updated Code of Ordinances, Windsor Heights now has the authority to implement a Trap-Neuter-Return (TNR) program for community cats. The Animal Rescue League (ARL) will serve as the City's initial partner in administering the program. Plagge reviewed the program process, explaining that residents will reserve traps, transport trapped cats to the ARL for evaluation and veterinary services, and return eligible cats to their original location. Cats unsuitable for return may be adopted or humanely euthanized based on the ARL's assessment. Participating residents will be responsible for the current $60 service fee. Plagge noted that the City's involvement will primarily consist of providing and collecting live traps, with minimal anticipated involvement from the Police Department. Plagge also thanked the ARL for its collaboration in developing the program over the past year and noted that the program is modeled after the one currently used in Des Moines. Motion by Fletcher Barry to Approve. Seconded by Threase Harms. Motion passed 5-0.

B. Consideration of Participation in the Mid-Iowa Narcotics Enforcement (M.I.N.E.) Task Force

Lieutenant Mike Irlbeck presented the item. Irlbeck proposed to continue the Police Department's participation in the Mid-Iowa Narcotics Enforcement (MINE) Task Force through July 1, 2028. He highlighted the benefits of Detective Davison's participation, including enhanced investigative capabilities, specialized training, regional partnerships, and support for complex investigations involving narcotics, firearms, human trafficking, and commercial sex services. Council discussed the value of the partnership, the City's financial commitment, participation by other metro communities, and the process for withdrawing from or rejoining the task force. Questions were also raised regarding a previously approved MOU that contained an incorrect expiration date. Staff explained that the error was administrative, the intended commitment was three years, and the agreement allows the City to withdraw at any time. Chief Roth emphasized the operational benefits of participation, including local control of investigations, access to specialized resources, officer training, and officer retention. Detective Davison gave comments regarding his experience. Officer Cody Brown spoke on the potential negative impact on morale and retention withdrawing from MINE would cause. Stating it would be a loss of opportunity for officers outside of regular patrol. Council members Jones and Campbell expressed support for continuing participation based on the Public Safety Committee's recommendation, while Council members Skeries and Harms requested additional information regarding the agreement, financial impacts, and return on investment before taking final action. Councilor Jones withdrew a motion to approve and Councilor Skeries withdrew her second. By consensus, the item was referred to the Personnel and Finance Committee for further review, including a financial analysis and clarification of the MOU history, before returning to the Council for consideration.

C. Consideration of Resolution No. 2026-52 - A Resolution Approving the Site Plan for 900 64th Street - Walnut Creek Community Church

Trey Rouse presented the item. The project includes renovations to the eastern portion of the church, parking lot improvements, updated sidewalks and ADA ramps, landscaping enhancements, and correction of an existing parking lot encroachment into the public right-of-way. Rouse noted the project is consistent with the Comprehensive Plan and zoning requirements, and both staff and the Planning and Zoning Commission recommended approval with conditions. Council discussion focused on ADA-accessible parking. Rouse explained that while the site currently has four designated accessible parking spaces, the redevelopment will provide the required five ADA-compliant spaces. Nikki Neal, 4121 Northwest Urbandale Drive, with Civil Design Advantage, the project's engeer firm, gave clarified that the spaces are being relocated to provide an accessible route to the building, Council expressed concerns that the new location would require a longer walking distance for individuals with mobility challenges.

The engineer acknowledged the concerns and noted the design balances accessibility requirements with the site's existing topography. Motion by Threase Harms to APPROVE. Seconded by Susan Skeries. Motion passed 5-0.

D. Consideration of Purchase of Police Department Hybrid Fleet Vehicle

Chief Pete Roth presented a request to purchase a hybrid Ford Police Interceptor SUV from Stivers Ford to replace an older unmarked vehicle. He noted the purchase would remain within the approved ERP budget and result in cost savings through the discounted purchase price, grant funding for in-car camera equipment, and the sale of an existing vehicle. The purchase would also reduce the department's fleet from ten to nine vehicles while increasing the number of hybrid vehicles in service. Council briefly discussed the vehicle's mileage, warranties, and long-term fleet replacement schedule. Chief Roth stated the purchase should delay the need for additional vehicle replacements for several years, assuming normal vehicle use and maintenance.

E. Consideration of Tobacco License - Super Quick Mart - 7690 Hickman Road

Adam Plagge present the item. Plagge noted that Super Quick Mart had no tobacco compliance check failures since its current license was issued, although the business had previously appeared before the Council following an alcohol license suspension. Council discussed the timing of the license application and the State's determination that it was timely filed. City Attorney Erin Clanton explained that state law considers applications submitted by the statutory deadline to be timely, but noted staff is exploring ordinance amendments requiring earlier local submission deadlines to ensure adequate time for Council review. Council also discussed requesting age-verification policies and procedures from tobacco and alcohol license applicants as part of future license reviews. Clanton indicated the information could be requested, although state law limits the grounds for denying a license. Council expressed support for exploring ordinance amendments related to application deadlines and requesting age-verification procedures from applicants. City Clerk Adam Strait will begin asking for applicants to provide age-verification procedures for both tobacco and alcohol applicants. Councilor Harms also commented on the public health impacts of tobacco use and the concentration of tobacco retailers within the community. Motion by Joseph Jones to APPROVE. Seconded by Susan Skeries.Roll call vote: Aye - Susan Skeries, Joseph Jones, Lauren Campbell, Fletcher Barry, Nay - Threase Harms. Motion Passed 4-1.

F. Consideration of Tobacco License - AWS's Mediterranean Market - 7213 Apple Valley Drive

Adam Plagge presented the item. The applicant had no tobacco compliance violations during the previous 12 months and had successfully passed all compliance checks. Motion by Joseph Jones to APPROVE. Seconded by Susan Skeries.Roll call vote: Aye - Susan Skeries, Joseph Jones, Lauren Campbell, Fletcher Barry, Nay - Threase Harms. Motion Passed 4-1.

G. Discuss Subchapter 60.13 Bicycle and Electric Scooter Regulations

Adam Plagge presented the item. The proposed ordinance establishes where various devices may operate, sets speed and responsible riding requirements, and includes provisions intended to improve safety while remaining generally consistent with neighboring communities. Plagge also discussed anticipated enforcement challenges and noted the ordinance remains a work in progress. Council discussed several potential revisions to the draft, including refining definitions and terminology, addressing pedestrian conveyances on higher-speed roadways, considering helmet requirements for minors, and evaluating additional bicycle safety provisions. Council also discussed balancing enforceability with public education and maintaining consistency with surrounding metro communities while addressing Windsor Heights' unique needs. By consensus, Council directed staff to revise the draft ordinance, circulate an updated version to the Council for review and comment, and return it for further discussion prior to the first reading.

6. **Reports:**

A. Mayor, Council Reports and Committee Updates, and Administration Reports

- Mayor Mike Jones reported that he would be attending the Metro Advisory Council (MAC) meeting the following day and the Metropolitan Planning Organization (MPO) meeting later in the week. He also shared that City representatives met with Google Fiber earlier that day and that he planned to tour the DART facility on Friday.
- Councilmember Threase Harms reported that the Polk County Cancer Coalition will continue meeting monthly through December, with a countywide cancer prevention plan expected in January. She noted the plan will include recommendations for local governments related to education, programming, policy, and potential ordinance changes. Councilmember Harms also shared that planning for Windsor Wonderland is underway, the Benefits Ad Hoc Committee will meet again in the coming weeks, and she attended the recent Nights in the Heights event.
- Councilmember Lauren Campbell reported that she attended the Ice Cream Social and thanked Councilmember Joseph Jones and Andrea for hosting the event. She also attended the first two Nights in the Heights events hosted by the Windsor Heights Foundation. Councilmember Campbell participated in the Windsor Heights Fourth of July Parade alongside fellow City representatives and noted the City's bounce house was well received. The Benefits Ad Hoc Committee will meet on July 22. She encouraged attendance at Public Safety Night Out on July 28 at Colby Park. She also announced that registration is open for the WHAMM 5K, which will be held during Fall Fest.
- Councilmember Fletcher Barry reported that he attended the Chamber Celebration Business Dinner, where Dinner Dispatch was recognized as the Windsor Heights Business of the Year, and shared that he graduated from the Chamber's Leadership Program. He also noted that voting for the Windsor Heights Citizen of the Year is underway. Councilmember Barry assisted the Windsor Heights Foundation during the Ice Cream Social at Colby Park, attended the Wind Down in Windsor Heights networking event at Premium Solutions, and plans to participate in the DART facility tour later in the week.
- Councilmember Joseph Jones reported on recent DART activities, including approval of the Phase 2 Operations and Maintenance Facility project. He noted that Phase 1 was completed on time and under budget, and that the approved Phase 2 plan is expected to eliminate the need for a future Phase 3 expansion. Councilmember Jones also shared that DART's Reimagine transit network implementation is progressing well, with staff continuing to evaluate ridership and route performance. He reminded residents of changes to State Fair shuttle service, noting that DART will continue providing service from the Capitol and Center Street locations, while service from Southeast Polk has been discontinued. However, there will be service from Southridge Mall. He encouraged residents to use the Center Street location as a convenient option for traveling to the Iowa State Fair.
- Councilmember Susan Skeries reported that she attended a Catch Des Moines meeting, where it was announced that the region was not selected to host the NCAA Men's Basketball First and Second Rounds in 2027 and 2028. She noted that while the bid was unsuccessful, being named a finalist was a significant accomplishment and that the region remains scheduled to host the tournament in 2028 while continuing to pursue future NCAA events. Councilmember Skeries also attended a Metro Waste Authority work session and thanked the volunteers who participated in the Urbandale Fourth of July Parade. She recognized Councilmember Lauren Campbell for coordinating the City's parade entry. Looking ahead, she shared plans to volunteer at the Food Bank of Iowa with Women in Government, attend the Metro Waste Authority meeting and

Special Events Committee meeting, and participate in the DART facility tour. She also reminded residents that the next Movies in the Park event will feature The LEGO Movie and encouraged volunteers to assist with the event.

- City Administrator Adam Plagge reported that staff was unsuccessful in securing a 2026 BUILD Grant but noted the City received positive feedback through the evaluation process. He also recognized staff across all departments for their successful efforts in obtaining several other grant awards. City Administrator Plagge stated that staff will review the BUILD Grant feedback and return to the Council with recommendations for future grant opportunities.

B. Quarterly Metro Ordinance Review - Q2 2026 Report

C. Code Enforcement - Q2 2026 Report

D. Police Department - Q1 2026 Report

E. July 2026 Fireworks Calls For Service Report

F. FY26 Stormwater Best Management Practices Program Report

G. Municipal Separate Storm Sewer System (MS4) Report

H. 2026 BUILD Grant Report

I. Metro Home Improvement Program Report

J. 68th Street South On-Street Parking Report

7. **Adjourn to Council Work Session Immediately Following the Regular Council Meeting**

Motion by Susan Skeries to adjourn at 7:34 PM. Seconded by Threase Harms. Motion Passed 5-0.

STAFF REPORT
CITY COUNCIL
August 3, 2026

TO: CITY COUNCIL

FROM:

SUBJECT: Approve Minutes of the City Council Work Session on 7.13.26

GENERAL INFORMATION

ATTACHMENTS
1. 7.13.26 Work Session Minutes

City of Windsor Heights Regular Business Meeting Minutes
Monday, July 13, 2026 - 6:00 PM
WINDSOR HEIGHTS COUNCIL CHAMBERS - 1133 66th ST

1. **Call to Order/Roll Call**

   Mayor Mike Jones called the meeting to order at 7:38 PM. Members present: Susan Skeries, Joseph Jones, Lauren Campbell, Fletcher Barry, Threase Harms. Staff present: City Administrator Adam Plagge, City Clerk Adam Strait, Finance Director Rachelle Swisher, City Attorney Erin Clanton

2. **Polk County Housing Trust Fund Discussion**

   A. Presentation and Discussion of Polk County Housing Trust Fund's Regional Affordable Housing Dashboard

      Toby O'Berry, Executive Director of the Polk County Housing Trust Fund, and Johnny Vallejo presented a new regional affordable housing dashboard designed to assist local governments with housing planning and policy decisions. The dashboard provides community-specific data on housing affordability, cost-burdened households, housing production, and other housing trends, and will continue to be expanded as additional data becomes available. Vallejo reviewed Windsor Heights-specific housing data, including projected housing growth and affordable housing goals, emphasizing that the dashboard is intended as a planning and conversation tool. Council discussed opportunities to preserve naturally occurring affordable housing, expand senior housing options, promote existing Housing Trust Fund programs to local property owners, and consider future policy tools that could support affordable housing. O'Berry and Vallejo also introduced the Housing Sites of Opportunity initiative, which identifies redevelopment opportunities on underutilized properties, and offered to return for a future presentation on the project.

3. **Adjourn**

   Motion by Susan Skeries to adjourn at 8:20 PM. Seconded by Joseph Jones. Motion Passed 5-0.

STAFF REPORT
CITY COUNCIL
August 3, 2026

TO: CITY COUNCIL

FROM:

SUBJECT: Approve Financial Reports

GENERAL INFORMATION

ATTACHMENTS
1. Claims Report

CITY OF WINDSOR HEIGHTS

*Check Detail Register©

Batch: 071026PAY,071026PAY-2,PRL-071726,PRL-071526,071726PAY,072426PAY,PRL-073126

Check #	Check Date	Vendor Name	Amount	Invoice	Comment
1110 CASH					
1237 e	07/10/26	**MIDAMERICAN ENERGY CO**			
E 110-230-6371		UTILITIES	$29.17	581676551	801 73RD ST
		Total	$29.17		
1238 e	07/10/26	**MIDAMERICAN ENERGY CO**			
E 110-230-6371		UTILITIES	$10.00	582434102	1804 73RD ST
		Total	$10.00		
1239 e	07/10/26	**MIDAMERICAN ENERGY CO**			
E 110-230-6371		UTILITIES	$3,165.22	582281716	582281716
		Total	$3,165.22		
1240 e	07/10/26	**MIDAMERICAN ENERGY CO**			
E 001-620-6371		UTILITIES	$184.33	582170350	1145 66TH ST
		Total	$184.33		
1241 e	07/10/26	**MIDAMERICAN ENERGY CO**			
E 110-230-6371		UTILITIES	$138.15	582167317	6540 UNIV AVE
		Total	$138.15		
1242 e	07/10/26	**MIDAMERICAN ENERGY CO**			
E 110-230-6371		UTILITIES	$26.64	582165437	7290 UNIV AVE
		Total	$26.64		
1243 e	07/10/26	**MIDAMERICAN ENERGY CO**			
E 110-230-6371		UTILITIES	$14.35	582164932	1601 73RD ST
		Total	$14.35		
1244 e	07/10/26	**MIDAMERICAN ENERGY CO**			
E 110-230-6371		UTILITIES	$104.56	582161528	6739 UNIV AVE
		Total	$104.56		
1245 e	07/10/26	**MIDAMERICAN ENERGY CO**			
E 001-480-6371		UTILITIES	$27.22	582156031	6900 SCHOOL ST
		Total	$27.22		
1246 e	07/10/26	**MIDAMERICAN ENERGY CO**			
E 110-230-6371		UTILITIES	$27.54	582147048	2227 63RD ST
		Total	$27.54		
1247 e	07/10/26	**MIDAMERICAN ENERGY CO**			
E 110-230-6371		UTILITIES	$45.00	582141312	1145 73RD ST
		Total	$45.00		
1248 e	07/10/26	**MIDAMERICAN ENERGY CO**			
E 001-480-6371		UTILITIES	$89.30	582140814	6900 SCHOOL ST
		Total	$89.30		
1249 e	07/10/26	**MIDAMERICAN ENERGY CO**			
E 110-230-6371		UTILITIES	$61.26	582139800	6440 HICKMAN RD
		Total	$61.26		
1250 e	07/10/26	**MIDAMERICAN ENERGY CO**			

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Batch: 071026PAY,071026PAY-2,PRL-071726,PRL-071526,071726PAY,072426PAY,PRL-073126

Check #	Check Date	Vendor Name		Amount	Invoice	Comment
E 110-230-6371		UTILITIES		$16.87	582138558	6410 HICKMAN RD
			Total	$16.87		
1251 e	07/10/26	**MIDAMERICAN ENERGY CO**				
E 001-480-6371		UTILITIES		$206.03	582197317	6900 SCHOOL ST
			Total	$206.03		
1252 e	07/10/26	**MIDAMERICAN ENERGY CO**				
E 110-230-6371		UTILITIES		$28.08	582140314	6300 UNIV AVE
			Total	$28.08		
1253 e	07/10/26	**MIDAMERICAN ENERGY CO**				
E 110-230-6371		UTILITIES		$26.04	582140306	7001 UNIV AVE
			Total	$26.04		
1254 e	07/10/26	**MIDAMERICAN ENERGY CO**				
E 001-150-6371		UTILITIES		$804.52	582170013	1133 66TH ST
			Total	$804.52		
1255 e	07/10/26	**MIDAMERICAN ENERGY CO**				
E 110-230-6371		UTILITIES		$26.58	582160533	951 73RD ST
			Total	$26.58		
1256 e	07/10/26	**MIDAMERICAN ENERGY CO**				
E 110-210-6371		UTILITIES		$46.81	582155879	6800 SCHOOL ST
			Total	$46.81		
1257 e	07/10/26	**MIDAMERICAN ENERGY CO**				
E 110-210-6371		UTILITIES		$343.96	582155962	6800 SCHOOL ST
			Total	$343.96		
1258 e	07/10/26	**MIDAMERICAN ENERGY CO**				
E 110-230-6371		UTILITIES		$25.36	582155543	7116 UNIV AVE
			Total	$25.36		
1259 e	07/10/26	**MIDAMERICAN ENERGY CO**				
E 110-230-6371		UTILITIES		$25.02	582165784	1140 73RD ST
			Total	$25.02		
1260 e	07/24/26	**MIDAMERICAN ENERGY CO**				
E 110-230-6371		UTILITIES		$28.69	582840201	801 73RD ST TRAFFIC SIGNAL
			Total	$28.69		
1261 e	07/24/26	**METRONET**				
E 001-615-6373		COMMUNICATIONS		$179.90		INTERNET
			Total	$179.90		
1262 e	07/24/26	**METRONET**				
E 001-615-6373		COMMUNICATIONS		$415.56		INTERNET
			Total	$415.56		
60535	07/10/26	**UNITYPOINT HEALTH**				
E 112-210-6150		INSURANCE		$538.40		ACCT#450676143 GUARANTOR#1028566

*Check Detail Register©

Batch: 071026PAY,071026PAY-2,PRL-071726,PRL-071526,071726PAY,072426PAY,PRL-073126

Check #	Check Date	Vendor Name		Amount	Invoice	Comment
			Total	$538.40		
60536	07/17/26	**ABSOLUTE CONCRETE CONSTRUCTION**				
E 322-210-6761		CAP OUTLAY		$146,015.10		73RD ST PHASE 1 PAY REQUEST #21
			Total	$146,015.10		
60537	07/17/26	**MPS ENGINEERS DBA KINSTON SERVICES**				
E 328-210-6761		CAP OUTLAY		$260,734.97		74TH ST PAY REQUEST #
			Total	$260,734.97		
60538	07/17/26	**SHEKAR ENGINEERING, P.L.C.**				
E 326-210-6761		CAP OUTLAY		$37,506.79		68TH ST S PAY REQUEST #11
			Total	$37,506.79		
60539	07/24/26	**AIRGAS**				
E 001-160-6498		MEDICAL SUPPLIES		$5.40	5525446803	OXYGEN
E 001-160-6498		MEDICAL SUPPLIES		$85.87	9173755535	OXYGEN
			Total	$91.27		
60540	07/24/26	**AMAZON CAPITAL SERVICES**				
E 001-150-6721		FURNITURE AND FIXTU		$36.59	13LD-7F37-4	STORAGE ORGANIZER
E 001-150-6332		REPAIR - VEHICLES & E		$41.73	16NK-J71R-L	C500 WIPERS
E 001-150-6310		BUILDING REPAIR		$118.04	16Q1-VTJP-	GYM EQUIPMENT
E 001-150-6506		OFFICE SUPPLIES		$279.98	1FNF-3JCR-	BUNK AND OFFICE TV
E 001-110-6506		OFFICE SUPPLIES		$49.99	1PGW-WND	OFFICE SUPPLIES
E 336-460-6750		CAP OUTLAY		$35.99	1TJC-HDDV-	BACKING BOARD FOR MURAL POSTERS
			Total	$562.32		
60541	07/24/26	**BOLTON & MENK**				
E 321-210-6407		PROF FEES/ENGINEERI		$5,986.50	0398659	Walnut Creek Access Eng
E 001-620-6407		PROF FEES/ENGINEERI		$5,745.50	0399582	Planning Services
E 326-210-6407		PROF FEES/ENGINEERI		$23,565.00	0400682	68th St Eng
E 322-210-6407		PROF FEES/ENGINEERI		$55,125.50	0400686	73rd St Eng
E 328-210-6407		PROF FEES/ENGINEERI		$35,555.50	0400688	74th St Eng
E 001-620-6407		PROF FEES/ENGINEERI		$3,220.00	0400697	GENERAL ENG
E 740-865-6407		PROF FEES/ENGINEERI		$1,060.00	0400698	Wilshire Storm Eng
			Total	$130,258.00		
60542	07/24/26	**BOUND TREE MEDICAL LLC**				
E 001-160-6498		MEDICAL SUPPLIES		$981.00	86276610	Medical Supplies
			Total	$981.00		
60543	07/24/26	**BRICK GENTRY PC**				
E 001-110-6411		LEGAL		$2,460.00	483510	June Legal
E 001-110-6411		LEGAL		$3,260.00	483511	PD Legal
			Total	$5,720.00		
60544	07/24/26	**CE PRINT + PROMO**				
E 001-620-6374		NEWSLETTERS		$1,684.00	44476	July Newsletter
			Total	$1,684.00		
60545	07/24/26	**CITY OF URBANDALE**				
E 001-110-6411		LEGAL		$4,000.71	2027-040000	CIT Program Fees

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Batch: 071026PAY,071026PAY-2,PRL-071726,PRL-071526,071726PAY,072426PAY,PRL-073126

Check #	Check Date	Vendor Name	Amount	Invoice	Comment
		Total	$4,000.71		
60546	07/24/26	**CITY OF WAUKEE**			
E 001-110-6373		COMMUNICATIONS	$35.67	20260713-2	Active Comms Software
		Total	$35.67		
60547	07/24/26	**CITY OF WEST DES MOINES**			
E 001-110-6413		CONTRIBUTIONS & PAY	$1,144.36	FN-2026-000	Contributions
		Total	$1,144.36		
60548	07/24/26	**DES MOINES WATER WORKS**			
E 001-480-6371		UTILITIES	$93.79		6900 School St
E 001-430-6507		OPERATING SUPPLIES	$57.63		1200 66th St
E 001-480-6371		UTILITIES	$48.27		6800 School St
		Total	$199.69		
60549	07/24/26	**EILEENS COOKIES**			
E 001-470-6496		MOVIES IN THE PARK	$162.50	1296	MOVIES IN THE PARK
		Total	$162.50		
60550	07/24/26	**GLOCK, INC**			
E 001-110-6230		TRAINING	$300.00	TRP/1002261	GLOCK ARMORER RECERT FOR PALMER
		Total	$300.00		
60551	07/24/26	**GREATER D.M. PARTNERSHIP**			
E 001-460-6413		CONTRIBUTIONS & PAY	$1,500.00	4024053	FY27 INVESTOR COMMITMENT
		Total	$1,500.00		

Check printed after receipt of invoice, held subject to City Council feedback on rescheduled presentation 10.6.26

60552	07/24/26	**INTERSTATE ALL BATTERY**			
E 001-150-6332		REPAIR - VEHICLES & E	$201.85	19246030487	C500 BATTERY
		Total	$201.85		
60553	07/24/26	**LOGAN CONTRACTORS SUPPLY**			
E 740-865-6765		STORM DRAINAGE CAPI	$71.50	R599501	64TH ST STORM PROJECT
		Total	$71.50		
60554	07/24/26	**MID-IOWA HEALTH FOUNDATION**			
E 001-460-6413		CONTRIBUTIONS & PAY	$10,000.00		CENTRAL IOWA EMERGENCY RENTAL ASSISTANCE STUDY
		Total	$10,000.00		
60555	07/24/26	**POOLE, JAMES B.**			
E 001-160-6413		CONTRIBUTIONS & PAY	$47.00		DR POOLE CONTROLLED SUBSTANCE RENEWAL REIMBURSE
		Total	$47.00		
60556	07/24/26	**PREMIER AUTOMOTIVE**			
E 001-160-6332		REPAIR - VEHICLES & E	$3,480.94	9077187	A553 NEW BRAKES
E 001-110-6332		REPAIR - VEHICLES & E	$45.18	9077502	VEHICLE REPAIR
		Total	$3,526.12		
60557	07/24/26	**ROGUE TRAINING CONSULTING**			
E 001-150-6230		TRAINING	$150.00	26-033	PEDERSEN DRIVER OPERATOR CLASS
		Total	$150.00		

CITY OF WINDSOR HEIGHTS

*Check Detail Register©

Batch: 071026PAY,071026PAY-2,PRL-071726,PRL-071526,071726PAY,072426PAY,PRL-073126

Check #	Check Date	Vendor Name		Amount	Invoice	Comment
60558	07/24/26	**SKERIES, SUSAN**				
E 001-470-6497		FALL FESTIVAL		$6.19		JULY 4TH PARADE REIMBURSE
E 001-470-6497		FALL FESTIVAL		$59.41		JULY 4TH PARADE REIMBURSE
			Total	$65.60		
60559	07/24/26	**STRYKER SALES CORPORATION**				
E 001-110-6504		MINOR EQUIPMENT		$300.00	9212927524	AED REPLACEMENT BATTERIES
			Total	$300.00		
60560	07/24/26	**WEDDING SHOW PRODUCTIONS**				
E 001-480-6402		ADVERTISING/MARKETI		$700.00	20260830169	WEDDING SHOW - CEC PROMOTION
			Total	$700.00		
60561	07/24/26	**ZWC CONDO ASSOC**				
E 001-620-6310		BUILDING REPAIR		$53.50	788118	PEST CONTROL
			Total	$53.50		
			1110	$612,646.51		

Fund Summary

1110 CASH	
001 GENERAL	$42,261.96
110 ROAD USE TAX	$4,189.30
112 EMPLOYEE BENEFITS	$538.40
321 WALNUT CREEK STREAM PROJ	$5,986.50
322 73RD STREET	$201,140.60
326 68TH STREET SOUTH	$61,071.79
328 74TH STREET	$296,290.47
336 MURAL PROJ COLBY BLDG	$35.99
740 STORM WATER	$1,131.50
	$612,646.51

STAFF REPORT
CITY COUNCIL
August 3, 2026

TO: CITY COUNCIL

FROM:

SUBJECT: Approve Amendment 1 to Agreement for Professional Services Between City of Windsor Heights and Bolton and Menk For Reconstruction of 74th Street

GENERAL INFORMATION

Topic: 74th St. Construction Services Agreement Amendment 1

In August 2024, the City Council approved a $240,000 Design Services Agreement with Bolton & Menk, Inc. (BMI) for the 74th Street Reconstruction Project. The remaining balance of design-services funding has since been used to provide construction management services during Stage 1. This agreement is being presented to authorize BMI to complete construction services for the remainder of the 74th St. reconstruction project, barring unforeseen circumstances, in an amount not to exceed $250,000.

BMI typically assigns an engineer to the project for approximately eight hours each workday to monitor construction, facilitate communication with residents, and coordinate staking, potholing, utility conflicts, and other construction-related matters. Wyatt Klooster is the BMI engineer assigned to the 74th Street project.

The combined design and amendment 1 construction services agreements total $490,000, representing approximately 24% of the current 74th St. construction contract amount of $2,014,595.

Stage 1 of 74th Street has been prepared for paving, which is anticipated to occur early this week. The roadway may reopen to local traffic within the next few weeks. To date, the project has proceeded relatively smoothly, with few utility strikes, trash collection issues, or change orders.

The contractor did not meet the Stage 1 early-completion deadline and is therefore not eligible for the early-completion incentive. Staff continues to communicate with the contractor regarding the importance of completing the project before the end of the construction season.

Administration recommends approval of the Construction Services Agreement Amendment 1 with BMI in an amount not to exceed $250,000.

ATTACHMENTS

1. [Amendment Owner-Eng]-[City of Windsor Heights]-[20260729]

AMENDMENT #1 TO AGREEMENT FOR PROFESSIONAL SERVICES
BETWEEN CITY OF WINDSOR HEIGHTS AND BOLTON & MENK, INC.

This AMENDMENT #1 ("Amendment") to the original Agreement for Professional Services between City of Windsor Heights ("OWNER") and Bolton & Menk, Inc. ("ENGINEER") dated August 19, 2024 (the "Agreement") is made and entered into on this 3rd day of August, 2026.

WHEREAS, OWNER has engaged ENGINEER, pursuant to the Agreement, to furnish OWNER with construction services in connection with the 74th Street Improvements (the "Project");

WHEREAS, OWNER and ENGINEER have agreed to amend the Agreement as set forth in this Amendment and subject to the terms and conditions of this Amendment; and,

NOW THEREFORE, for good and valuable consideration, the sufficiency of which is hereby acknowledged, the parties agree as follows:

1. SCOPE ATTACHMENT. The Scope Attachment is attached and incorporated herein by reference as the "Scope Attachment". If the OWNER requests or ENGINEER performs additional services for the Project, ENGINEER shall make such request to OWNER in writing, setting forth any changes or additions to the Scope of the Agreement, including any additional deliverables requested for the Project in the attached Scope Attachment.

2. FEE ATTACHMENT. The Scope Attachment is attached and incorporated herein by reference as Exhibit B. If the ENGINEER requests additional fees for the services for the Project or for services performed pursuant to "Scope Attachment", ENGINEER shall make such request to OWNER in writing, setting forth any changes in fees and all fees associated with such additional services, in the same or substantially similar format as "Fee Attachment". If OWNER agrees to the change in scope or fees proposed by Engineer in writing, the parties will adjust the Maximum Fee to account for such changes. No claim for extra services performed by Engineer will be allowed by OWNER except as provided in this Amendment nor will Engineer perform any services or work not previously approved by OWNER except upon receipt of a written amendment.

3. Additional Forms. The following are attached and incorporated into the Agreement:
    a) Scope Attachment
    b) Fee Attachment

4. All Other Terms and Conditions of the Agreement. Any conflict on inconsistency as to terms set forth in this Amendment and the Agreement or other writing will be governed by this Amendment.

IN WITNESS WHEREOF, the parties have caused this AMENDMENT #1 to be executed by their duly authorized representatives on the dates written below.

City of Windsor Heights	BOLTON & MENK, INC.
City of Windsor Heights	Bolton & Menk, Inc.
Signature : _____	Signature : _____
Signer Name: _____	Signer Name: Justin Ernst_____
Signer Title : _____	Signer Title : Principal Engineer_____

SCOPE ATTACHMENT TO AMENDMENT #001

This **SCOPE ATTACHMENT** is part of **AMENDMENT #001** to the Agreement. Unless otherwise agreed to in writing by the parties, any conflict or inconsistency as to the terms set forth in the Amendment and the Agreement shall be governed by the Amendment

ATTACHMENT A
SCOPE OF SERVICES

The work to be performed by Bolton & Menk, Inc. (CONSULTANT) under this agreement shall encompass and include detailed work, services, materials, equipment and supplies necessary to complete construction administration for the project.

The scope of services to be performed by the CONSULTANT shall be in accordance with generally accepted standards of practice and shall include the services to complete the following tasks:

TASK I - BASIC SERVICES OF THE CONSULTANT – Task completed.

TASK II – CONSTRUCTION ADMINISTRATION SERVICES

A. Construction Administration: Construction administration shall be included for one (1) bid package. The project is anticipated to be City funded. For budgeting purposes, a maximum of 140 hours is anticipated for construction administration. CONSULTANT will provide the following construction administration activities:
   1. Provide supervision and support to resident project representatives.
   2. Convene and preside over weekly construction scheduling meetings during the construction.
   3. Prepare change orders and written directives.
   4. Review, for conformance with design concept only, any shop drawings required to be furnished by the Contractor.
   5. Review any material lists, supplier's lists, or other submittals required to be furnished by the Contractor.
   6. Perform visits to the site at intervals appropriate for the various stages of construction, observe the progress and quality of the executed work of the contractors, and determine, in general, if such work is proceeding in accordance with the contract documents.
   7. Meet with affected property owners as required to answer specific questions or to address construction or design related concerns.
   8. Obtain additional information or clarifications from City when required for the proper execution of the work.
   9. Review and make a recommendation on the Contractor's request for partial payments. Such review will be based upon CONSULTANT'S on-site observations and such written documentation as may be available to CONSULTANT at the time of review. Such review will not include verification of unit price contract quantities by physical measurement of individual work items.

B. Construction Observation: CONSULTANT will provide one full-time on-site representative during the construction of the project. For budgeting purposes, it is assumed that the construction period will be sixteen (16) weeks and that one 90%-time staff member of the CONSULTANT will be available for the construction observation services on this Project. A maximum of 850 hours is anticipated for construction observation. Services consist of the following:
   1. Attend weekly construction progress meetings and prepare minutes
   2. Schedule and coordinate construction staking
   3. In coordination with the geotechnical and materials testing company, schedule and coordinate materials testing and maintain reports and documentation of testing performed and associated results
   4. Assist the project engineer with the preparation, review and approval of partial pay requests
   5. Meet with affected property owners, as required, to answer specific questions or to address construction or design related concerns. Resident project representative will be the primary contact person for property owners for addressing construction related concerns and issues.
   6. Serve as engineer's liaison with contractor, working principally through contractor's superintendent and assist in understanding the intent of the Contract Documents
   7. Assist project engineer in serving as City's liaison with contractor
   8. Assist in obtaining additional details or information from City, when required for proper execution of the work

9. Review of Work, Rejection of Defective Work, Inspections and Tests
10. Report to project engineer when clarifications and interpretations of the Contract Documents are needed and transmit to contractor clarifications and interpretations as issued by project engineer
11. Modifications: Consider and evaluate contractor's suggestions for modifications in Drawings or Specifications and report with RPR's recommendations to project engineer. Transmit to contractor decisions as issued by project engineer.
12. Maintain Construction Records, including construction correspondence; construction diary; record and documentation of quantities; record of measurements, ties, sketches or other documentation of buried construction items and underground utilities; photographic and video record during construction; materials testing reports and documentation
13. Records library – the resident project representative will work with the project engineer to establish and maintain a library of the records
14. On-site construction representative services do not constitute acceptance or approval of the Contractor's work, nor do they relieve any part of the contractor's responsibility under the construction documents.
15. All materials testing shall be provided by a consultant contracted with the City.

C. Construction Staking

Services consist of the following:

1. Set and/or verify vertical and horizontal control network necessary for accurate construction layout.
2. Perform computations required to set the required survey stakes.
3. Set stakes indicating the position of the pedestrian ramps for final placement.
4. Paving hub stakes indicating the position of the surfaces will be set every 25 feet on the curves and 50 feet on the straight-a-ways; additional stakes will be set indicating the position of the points of curvature, points of tangency, radius points, deflections, high and low points, and transitions.
5. Set offset stakes indicating the position for intakes and manholes.
6. Set offset line references stakes for storm sewer piping between structures at 50-foot stationing and bends.
7. Set offset line reference stakes indicating the positioning for water main piping at and between any valves and fittings.
8. Set offset line reference stakes indicating the location of fire hydrants, valves and fittings.
9. Set stakes indicating the position of one edge of sidewalks at 25' intervals, deflections, beginnings, ends and grade breaks.

D. Construction Closeout, Audit and Record Drawings:

1. The CONSULTANT will conduct an inspection of the project in the company of City to determine if the work is substantially complete and a final inspection to determine if the completed work is acceptable. A punch list will be developed from the inspection and be used to track completion of those items. The CONSULTANT may recommend, in writing, final payment to the Contractor and may give written notice to the City and the Contractor that the work is acceptable. A punch list will be developed from the inspection and be used to track completion of those items.

2. The CONSULTANT will prepare record drawings reflecting constructed conditions based on the marked-up drawings and other data furnished by the Contractor and the Resident Construction Observation. The CONSULTANT shall provide the City with one (1) reproducible copy of the record drawings.

3. CONSULTANT shall provide GPS data for all as-constructed improvements for sanitary sewer, storm sewer and water main infrastructure. Information collected to include manhole location, invert elevations, service location locations, fitting locations, valve locations, and water main top of pipe elevations every 50' or change in directions.

4. The CONSULTANT will update notes, record drawings (if required) and other materials documenting the project construction, and provide materials as required by the City, as final records of the work.

Material testing, plant monitoring, and other testing of materials to be incorporated into the Project including on-site sampling of concrete is not included. Consultant shall coordinate the frequency and timing of testing on behalf of the City and in coordination with the contractor.

ADDITIONAL SERVICES NOT INCLUDED IN THIS CONTRACT

Additional Services not included as part of this Scope. If authorized, under a supplemental agreement, the CONSULTANT shall furnish or obtain from others the following services:

1. Construction Period Testing Services
2. Utility Potholing
3. All other services not specifically identified in the scope.

FEE ATTACHMENT

This **FEE ATTACHMENT** is part of **AMENDMENT #001** to the Agreement. Unless otherwise agreed to in writing by the parties, any conflict or inconsistency as to the terms set forth in the Amendment and the Agreement shall be governed by the Amendment.

1. The parties agree to the following additional services to complete the Project, as set forth below:

AMENDMENT (SERVICES AND DELIVERABLES)			Amount
Deliverable 1	Construction Services		$250,000
		THIS AMENDMENT Sub-Total	$250,000
		(Less Reduction in Fee -if any)	
		THIS AMENDMENT TOTAL	$250,000

AMENDMENT (IMPACT TO BUDGET)			
ORIGINAL AGREEEMNT			$240,000
PREVIOUS AMENDMENTS			$0
AMENDMENT #001 CHANGE	Construction Services		$250,000
		NEW PROJECT TOTAL, MAXIMUM FEE, NOT TO EXCEED	$490,000

2. SCHEDULE: Schedule for performance of services will be modified as follows or as set forth in the Agreement, such that all services will be completed by **4/1/2027**.

3. MAXIMUM FEE. The Maximum Fee will not exceed: $490,000.

STAFF REPORT
CITY COUNCIL
August 3, 2026

TO: CITY COUNCIL

FROM:

SUBJECT: Approve Resolution No. 2026-53 A Resolution Authorizing the City of Windsor Heights to Submit an Application for Funding From the Federal Surface Transportation Block Grant Program (STBG) to the Des Moines Area Metropolitan Planning Organization for the Partial Funding of the Construction of 73rd St. Improvements and Further Approving the Application which obligates the City of Windsor Heights to Matching Funds for the Construction of Said Project

GENERAL INFORMATION

The City of Windsor Heights previously received $2.25 million for reconstruction of 73rd St. North and has been allocated $2.7 million in STBG funds for future reconstruction of 73rd St. South. 73rd St. South reconstruction is currently scheduled in the CIP for 2030-2031 at a potential cost of approximately $19 million. Additional discussion on 73rd St. south reconstruction cost, scope and timing is slated for City Council in August, aligning with the Department of Transportation's feedback on the recent BUILD Grant application.

Following the result of the 2025 BUILD Grant application and recent revisions to the MPO's STBG awarding criteria, the MPO suggested the City consider applying for another year of STBG funding for 73rd St. South. The Personnel and Finance Committee discussed whether to put forth an application and determined it was appropriate to do so. This Resolution authorizes submission of the $1 million application and reaffirms the City's matching funds for the project. Bolton and Menk is completing small adjustments to the prior years STBG application and will work with city staff to submit an application requesting $1 million. Applications are due August 6th.

ATTACHMENTS

1. Resolution No. 2026-53 73rd St. South STBG

RESOLUTION NO. 2026-53

A RESOLUTION AUTHORIZING THE CITY OF WINDSOR HEIGHTS TO SUBMIT AN APPLICATION FOR FUNDING FROM THE FEDERAL SURFACE TRANSPORTATION BLOCK GRANT PROGRAM (STBG) TO THE DES MOINES AREA METROPOLITAN PLANNING ORGANIZATION (MPO) FOR THE PARTIAL FUNDING OF THE CONSTRUCTION OF 73RD STREET IMPROVEMENTS PROJECT AND FURTHER APPROVING THE APPLICATION WHICH OBLIGATES THE CITY OF WINDSOR HEIGHTS TO MATCHING FUNDS FOR THE CONSTRUCTION OF SAID PROJECT

Whereas, the City of Windsor Heights is a full member of the Des Moines Area Metropolitan Planning Organization; and

Whereas, the Federal Surface Transportation Block Grant Program provides funding to local jurisdictions for the construction of eligible projects; and

Whereas, the program is administered by the Des Moines Area Metropolitan Planning Organization which prioritizes and ranks all project applications; and

NOW, THEREFORE, BE IT RESOLVED BY THE CITY COUNCIL OF THE CITY OF WINDSOR HEIGHTS that: The City Council supports and approves the application requesting $1,000,000 in Federal Surface Transportation Block Grant Program funding for the 73rd Street Improvements Project. The City Council hereby commits to the City of Windsor Heights matching monies as required by the Federal Surface Transportation Block Grant Program funding. The City of Windsor Heights hereby commits to accepting and maintaining these improvements for a minimum of twenty (20) years following the completion. The Mayor and City Administrator are hereby authorized to approve and execute the application on behalf of the City Council.

PASSED AND APPROVED THIS date _____

_____
Mike Jones, Mayor

ATTEST:

_____
Adam Strait, City Clerk

STAFF REPORT
CITY COUNCIL
August 3, 2026

TO: CITY COUNCIL

FROM:

SUBJECT: Approve Agreement for Professional Services Between Bolton and Menk and City of Windsor Heights for Design of 65th St. Storm Sewer Project

GENERAL INFORMATION

The up to $25,000 of work to be performed by Bolton & Menk, Inc. (CONSULTANT) under this agreement shall encompass and include detailed work, services, materials, equipment and supplies necessary to complete analysis and design for the project.

The project involves the installation of storm sewer on 65th Street potentially from The Windsor level spreader to the Public Safety building. The CONSULTANT will carry out design surveys, legal surveys, preliminary and final storm sewer design, and preparation of bidding documents. This scope of services is based on the following project assumptions:
Project Assumptions
• Field surveys will extend along the south and rear property line of 1135 65th Street.
• Legal surveys will be limited to 2 parcels.
• New storm sewer, intakes and manholes will be constructed. A drainage report will be completed to determine improvement types and locations.
• The Statewide Urban Design and Specifications (SUDAS) shall apply to construction work on this Project.
• Project design and property acquisition will be completed in the calendar year 2026. It is anticipated that the project letting will be in December of 2027. The roadway construction will be completed in the 2027 construction season.

Staff is continuing to work to facilitate cooperation between The Windsor and the property owners of 1135 65th St. to incorporate joint improvements as part of this project that would help alleviate water issues experienced by 1135 65th St. Legal is preparing closing documents for 1122 65th St., being acquired to facilitate the storm sewer connection to Public Safety, the closing should occur early August.

ATTACHMENTS

1. 65th St. Storm Sewer Professional Services Agreement

CONTRACT SUMMARY PAGE

Term		Description		Section
"CONSULTANT"		Bolton & Menk, Inc.		Preamble
"CLIENT"		City of Windsor Heights		Preamble
"Project"		65th Street Storm Sewer		Preamble
Scope of Services		Services to be performed in connection with the Project		Exhibit A/Exhibit I
Fees		Consultant shall be compensated by (check one): ☑ on an hourly basis pursuant to the Schedule of Fees, but the total fees shall not exceed $25,000.00		Section III.A, Schedule 1
Schedule of Fees		Hourly rates to be charged for the Project or for Additional Services		Schedule 1
Reimbursable Expenses		Consultant shall be reimbursed at cost plus an overhead fee not to exceed 10.00% for Direct Expenses incurred in the performance of the work.		Section III.A.6
Payment		Consultant shall invoice Client no more than monthly, with payments to be due within 45 days of invoice.		Section III.B
Limitation of Liability		Consultant's aggregate liability shall not exceed: ___[the total available insurance proceeds paid on behalf of or to Consultant in satisfaction of Client's claims, up to the then available amount of insurance under the applicable policy		Section IV.C.5
Term of Agreement		one (1) years or a longer identified completion period		Section IV.J

ATTACHMENTS:

- Schedule 1 Schedule of Fees
- Exhibit A Scope of Services

AGREEMENT FOR PROFESSIONAL SERVICES IA

STANDARD PROJECT-PUBLIC CLIENT

PUBLIC CLIENT and BOLTON & MENK, INC.

This Agreement, made this 13th day of July, 2026, by and between City of Windsor Heights, Windsor Heights, IA 50324, ("CLIENT"), and Bolton & Menk, Inc., 430 E. Grand Ave, Suite 101, Des Moines, IA 50309, ("CONSULTANT").

WITNESS, whereas the CLIENT requires professional services in conjunction with 65th Street Storm Sewer Improvements("Project") and whereas the CONSULTANT agrees to furnish the various professional services (the "Services"), including Basic Services and Additional Services as defined in Section I, as requested by the CLIENT.

NOW, THEREFORE, in consideration of the mutual covenants and promises between the parties hereto, it is agreed:

SECTION I – CONSULTANT'S SERVICES

A. The CONSULTANT agrees to perform the various Basic Services in connection with the Project as described in Exhibit A.

B. Upon mutual agreement of the parties, professional services in addition to the Basic Services (the "Additional Services") may be authorized as described in Paragraph IV.B, and when so authorized, shall be included with the Services to be provided under this Agreement.

SECTION II - THE CLIENT'S RESPONSIBILITIES

A. The CLIENT shall promptly compensate the CONSULTANT for the Services in accordance with Section III of this Agreement.

B. The CLIENT shall place any and all previously acquired information related to the Project in its custody at the disposal of the CONSULTANT for its use. Such information shall include, but is not limited to: boundary surveys, topographic surveys, preliminary sketch plan layouts, building plans, soil surveys, abstracts, deed descriptions, tile maps and layouts, aerial photos, utility agreements, environmental reviews, and zoning limitations. The CONSULTANT may rely upon the accuracy and sufficiency of all such information in performing services unless otherwise instructed, in writing, by CLIENT.

C. The CLIENT will guarantee access to and make all provisions for entry upon public portions of the project and reasonable efforts to provide access to private portions and pertinent adjoining properties.

D. The CLIENT will give prompt notice to the CONSULTANT whenever the CLIENT observes or otherwise becomes aware of any defect in the proposed project.

E. The CLIENT shall designate a liaison person to act as the CLIENT'S representative with respect to services to be rendered under this Agreement. Said representative shall have the authority to transmit instructions, receive instructions, receive information, interpret and define the CLIENT'S policies with respect to the project and CONSULTANT'S services.

F. The CONSULTANT'S services do not include legal, insurance counseling, accounting, independent cost estimating, financial advisory or "municipal advisor" (as described in Section 975 of the Dodd-Frank Wall Street Reform and Consumer Protection Act 2010 and the municipal advisor registration rules issued by the SEC) professional services and the CLIENT shall provide any such services as may be required for completion of the Project described in this Agreement.

G. The CLIENT will obtain any and all regulatory permits required for the proper and legal execution of the Project. CONSULTANT will assist CLIENT with permit preparation and documentation to the extent described in Exhibit I.

H. The CLIENT may hire, at its discretion, when requested by the CONSULTANT, an independent test company to perform laboratory and material testing services, and soil investigation that can be justified for the proper design and construction of the Project. The CONSULTANT shall assist the CLIENT in selecting a testing company. Payment for testing services shall be made directly to the testing company by the CLIENT and is not part of this Agreement. If CLIENT elects not to hire an independent test company, CLIENT shall provide CONSULTANT with guidance and direction on completing those aspects of design and construction that require additional testing data.

SECTION III - COMPENSATION FOR SERVICES

A. **FEES**.

1. The CLIENT will compensate the CONSULTANT in accordance with the Schedule of Fees for the time spent by CONSULTANT'S personnel in performance of the Services. Total fees for the Services shall not exceed $25,000.00 without the prior consent of CLIENT. See the attached Schedule 1 for Schedule of Fees applicable to this Agreement.

2. The preceding Schedule of Fees shall apply for services provided through December 31, 2026. Hourly rates may be adjusted by CONSULTANT, in consultation with CLIENT, on an annual basis thereafter to reflect reasonable changes in its operating costs and other market factors. Adjusted rates will become effective on January 1st of each subsequent year, upon written acceptance by CLIENT.

3. Rates and charges do not include sales tax. If such taxes are imposed and become applicable after the date of this Agreement CLIENT agrees to pay any applicable sales taxes.

4. The rates in the Schedule of Fees include labor, general business and other normal and customary expenses associated with operating a professional business. Unless otherwise agreed in writing, the above rates include vehicle and personal expenses, mileage, telephone, survey stakes and routine expendable supplies; and no separate charges will be made for these activities and materials.

5. Additional Services as outlined in Section I.B will vary depending upon project conditions and will be billed on an hourly basis at the rate described in Section III.A.1.

6. subject to the Total cost not to exceed fee or approved Additional Services

B. PAYMENTS AND RECORDS.

1. The payment to the CONSULTANT will be made by the CLIENT upon billing at intervals not more often than monthly at the herein rates and terms.

2. If CLIENT fails to make any payment due CONSULTANT for Services and expenses within 45 days after date of the CONSULTANT'S invoice, a service charge of one and one-half percent (1.5%) per month or the maximum rate permitted by law, whichever is less, will be charged on any unpaid balance.

3. In addition to the service charges described in preceding paragraph, if the CLIENT fails to make payment for Services and expenses within 60 days after the date of the invoice, the CONSULTANT may, upon giving seven days' written notice to CLIENT, suspend Services and withhold project deliverables due under this Agreement until CONSULTANT has been paid in full for all past due amounts for Services, expenses and charges, without waiving any claim or right against the CLIENT and without incurring liability whatsoever to the CLIENT.

4. Documents Retention. The CONSULTANT will maintain records that reflect all revenues, costs incurred and the Services provided in the performance of the Agreement. The CONSULTANT will also agree that the CLIENT, State, or their duly authorized representatives may, at any time during normal business hours and as often as reasonably necessary, have access to and the right to examine, audit, excerpt, and transcribe any books, documents, papers, records, etc., and accounting procedures and practices of the CONSULTANT which are relevant to this Contract for a period of six years.

SECTION IV – GENERAL

A. STANDARD OF CARE. Professional services provided under this Agreement will be conducted in a manner consistent with that level of care and skill ordinarily exercised by members of the CONSULTANT'S profession currently practicing under similar conditions. No warranty, express or implied, is made.

B. CHANGE IN PROJECT SCOPE. In the event the CLIENT changes or is required to change the scope or duration of the Project from that described in Exhibit I, and such changes require Additional Services by the CONSULTANT, the CONSULTANT shall be entitled to additional compensation at the applicable hourly rates. To the fullest extent practical, the CONSULTANT shall give notice to the CLIENT of any Additional Services, prior to furnishing such Additional Services. The CONSULTANT shall furnish an estimate of additional cost, prior to authorization of the changed scope of work and this Agreement will be revised in writing.

C. LIMITATION OF LIABILITY

1. Liability of CONSULTANT. CONSULTANT shall indemnify CLIENT from losses, damages, and judgments arising from third-party claims or actions relating to the Project only to the extent caused by the negligent acts, errors or omissions (whether in the performance of professional services or otherwise) of CONSULTANT or CONSULTANT'S officers, employees, or subconsultants occurring during the scope of CONSULTANT's work on the Project and provided that any such claim, action, loss, damages, or judgment is attributable to bodily injury, sickness, disease, or death, or to injury to or destruction of tangible property. CONSULTANT's obligation to indemnify the CLIENT and CLIENT's officers and employees harmless does not include a duty to defend. This indemnification shall not apply to third-party claims or actions for consequential damages, lost revenues, increased expense, or lost profits, nor to any claim for punitive or exemplary damages.

2. Liability of Client. To the fullest extent permitted by law and subject to the maximum limits of liability set forth by applicable law, CLIENT shall indemnify CONSULTANT from losses, damages, and judgments (including reasonable attorneys' fees and expenses of litigation) arising from claims or actions relating to the Project, provided that any such claim, action, loss, damages, or judgment is attributable to bodily